

The Code of Hammurabi: Why Did People Settle?

Name: _____ Section: _____ Date: Friday, October 2

Prompt

For most of human history, people lived as hunter-gatherers. By about 1754 BCE, Babylon was a settled, hierarchical society ruled by a king and governed by written law. Historians explain this shift in three ways: coercion, shared belief (cognitive), and collaboration.

Which theory best explains why people left the hunter-gatherer way of life for settled, hierarchical societies? Using the Code of Hammurabi as your evidence, argue for one theory and address at least one other.

The Three Theories

Coercive — People were forced. Rulers and elites used violence, punishment, and rank to control others.

Cognitive — People shared beliefs. Gods, myths, and shared ideas made the order seem legitimate, so people accepted it.

Collaborative — People cooperated. Farming, irrigation, and trade required rules that benefited everyone who followed them.

Directions

1. Handwritten. Write in pen on the paper provided.

2. The documents are attached. No notes.

3. Write a multi-paragraph essay with:

- **Introduction** — context (who, when, where), ending with a thesis that answers the prompt, chooses one theory, and names two or more reasons.
- **At least two body paragraphs** — each with a claim, evidence cited by law number (e.g., “Law 53”), and analysis explaining how the evidence supports your theory.
- **A counterargument paragraph** — the strongest evidence for one other theory, cited by law number, and why your theory explains it better.
- **Conclusion** — restate your thesis in new words.

4. Use at least **five** different excerpts from the documents. Cite each by number or as “Prologue” / “Epilogue.”

Documents: The Code of Hammurabi (c. 1754 BCE), Selected Excerpts

Translation: L. W. King (1910), Avalon Project, Yale Law School.

Prologue. ...Anu and Bel called by name me, Hammurabi, the exalted prince, who feared God, to bring about the rule of righteousness in the land, to destroy the wicked and the evil-doers; so that the strong should not harm the weak; so that I should rule over the black-headed people like Shamash, and enlighten the land, to further the well-being of mankind.

Law 2. If any one bring an accusation against a man, and the accused go to the river and leap into the river, if he sink in the river his accuser shall take possession of his house. But if the river prove that the accused is not guilty, and he escape unhurt, then he who had brought the accusation shall be put to death, while he who leaped into the river shall take possession of the house that had belonged to his accuser.

Law 15. If any one take a male or female slave of the court, or a male or female slave of a freed man, outside the city gates, he shall be put to death.

Law 16. If any one receive into his house a runaway male or female slave of the court, or of a freedman, and does not bring it out at the public proclamation of the major domus, the master of the house shall be put to death.

Law 26. If a chieftain or a man (common soldier), who has been ordered to go upon the king's highway for war does not go, but hires a mercenary, if he withholds the compensation, then shall this officer or man be put to death, and he who represented him shall take possession of his house.

Law 48. If any one owe a debt for a loan, and a storm prostrates the grain, or the harvest fail, or the grain does not grow for lack of water; in that year he need not give his creditor any grain, he washes his debt-tablet in water and pays no rent for this year.

Law 53. If any one be too lazy to keep his dam in proper condition, and does not so keep it; if then the dam break and all the fields be flooded, then shall he in whose dam the break occurred be sold for money, and the money shall replace the corn which he has caused to be ruined.

Law 55. If any one open his ditches to water his crop, but is careless, and the water flood the field of his neighbor, then he shall pay his neighbor corn for his loss.

Law 117. If any one fail to meet a claim for debt, and sell himself, his wife, his son, and daughter for money or give them away to forced labor: they shall work for three years in the house of the man who bought them, or the proprietor, and in the fourth year they shall be set free.

Law 196. If a man put out the eye of another man, his eye shall be put out.

Law 197. If he break another man's bone, his bone shall be broken.

Law 198. If he put out the eye of a freed man, or break the bone of a freed man, he shall pay one gold mina.

Law 199. If he put out the eye of a man's slave, or break the bone of a man's slave, he shall pay one-half of its value.

Law 200. If a man knock out the teeth of his equal, his teeth shall be knocked out.

Law 201. If he knock out the teeth of a freed man, he shall pay one-third of a gold mina.

Law 202. If any one strike the body of a man higher in rank than he, he shall receive sixty blows with an ox-whip in public.

Law 203. If a free-born man strike the body of another free-born man of equal rank, he shall pay one gold mina.

Law 204. If a freed man strike the body of another freed man, he shall pay ten shekels in money.

Law 205. If the slave of a freed man strike the body of a freed man, his ear shall be cut off.

Law 229. If a builder build a house for some one, and does not construct it properly, and the house which he built fall in and kill its owner, then that builder shall be put to death.

Law 282. If a slave say to his master: "You are not my master," if they convict him his master shall cut off his ear.

Epilogue. ...That the strong may not injure the weak, in order to protect the widows and the orphans, I have in Babylon... inscribed my precious words on a memorial stone... Let any oppressed man who has a cause come into the presence of my image as king of righteousness; let him read the inscription, and understand my precious words: the inscription will explain his case to him; he will find out what is just, and his heart will be glad...